

Home Use of Oxygen

CAG-00296R3

Issue

On September 27, 2021, we issued a national coverage determination (NCD) for Home Use of Oxygen (NCD 240.2). We are proposing to amend that NCD in order to conform section D with the specific time period specified in §1834(a)(5)(E) of the Social Security Act. Section D pertains to the Medicare Administrative Contractor (MAC) authority to determine reasonable and necessary coverage for patients who are not described in earlier sections. Specifically, we are amending the period of initial coverage for these patients from 120 days to 90 days, in order to align with the 90-day statutory time period.

The scope of this proposed decision is limited and we are not reconsidering other sections of NCD 240.2. The other sections of the NCD do not contain language related to the initial coverage period. Further, it does not include consideration of either NCD 240.2.1, Home Use of Oxygen in Approved Clinical Trials, or NCD 20.29, Hyperbaric Oxygen Therapy.

CMS is soliciting public comment relevant to the request.

National Coverage Determinations

[NCD for Home Use of Oxygen \(240.2\)](#) 

Benefit Category

Durable Medical Equipment

Requestor Information

Requestor Name	Requestor Letter
N/A	N/A

Important Dates

Formal Request Accepted and Review Initiated

05/12/2022

Expected NCA Completion Date

08/10/2022

Proposed Decision Memo Released

05/12/2022

Proposed Decision Memo Public Comment Period

05/12/2022 - 06/10/2022

Decision Memo Released

07/08/2022

Actions Taken

May 12, 2022

CMS initiates this national coverage analysis for Home Use of Oxygen and posts the [proposed decision memorandum](#). The initial 30-day public comment period begins with this posting date, and ends after 30 calendar days. CMS considers all public comments. A final decision will be issued within 60 days after the conclusion of the 30-day public comment period.

Instructions on submitting comments can be found at:

<https://www.cms.gov/Medicare/Coverage/InfoExchange/publiccomments>.

To submit a comment, please use the blue "**Comment**" bubble at the top of the page. Enter comments directly into the "Submit A Public Comment" webpage.

July 8, 2022

Posted [decision memo](#)

